

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
ORDINARY ORIGINAL CIVIL JURISDICTION JURISDICTION
WRIT PETITION NO. 1847 OF 2026

Sunrise Housing Private Limited

...Petitioner

VERSUS

1. State of Maharashtra

...Respondent No.1

2. Mumbai Metropolitan Region Development Authority

...Respondent No.2

AFFIDAVIT IN REPLY ON BEHALF OF RESPONDENT NO. 2

I, Arvind Rajan, Deputy Metropolitan Commissioner, having office at Bandra East, Mumbai, Maharashtra, the Respondent No.2 above named, do hereby solemnly affirm and state as under:

1. I say that I am the Respondent No.2 in the above WRIT PETITION and am well acquainted with the facts and circumstances of the case. I have perused the Petition and the documents annexed thereto and am competent to affirm this Affidavit in Reply. Filing of Affidavit in Reply — The deponent has perused a copy of the Writ Petition filed by Sunrise Housing Private Limited. The deponent is filing this Affidavit in Reply on behalf of Respondent No. 2, Mumbai Metropolitan Region Development Authority, to oppose the contentions raised in the Writ Petition and the reliefs sought by the Petitioner.

2. At the outset, I deny each and every statement, contention and averment made in the Writ Petition, except those specifically admitted herein. General Denial — Respondent No. 2 denies all statements, contentions and averments made in the Writ Petition except those specifically admitted in this Affidavit in Reply. Nothing contained in the Writ Petition that has not been specifically dealt with or admitted is to be treated as an admission by Respondent No. 2.

3. Preliminary Position — The Writ Petition is misconceived and devoid of merits. The actions challenged by the Petitioner were taken in accordance with the applicable redevelopment procedure and within the authority available to Respondent No. 2.

4. Denial Regarding the Communication — Respondent No. 2 denies that the impugned communication dated 15 July 2026 was issued without authority.

5. Authority for the Communication — The communication dated 15 July 2026 was issued pursuant to the applicable redevelopment procedure and after consideration of the relevant records.

6. Document Relied Upon — Respondent No. 2 relies upon the communication dated 15 July 2026. A copy of that communication is annexed as EXHIBIT-‘A’.

7. In the premises aforesaid, I say that the WRIT PETITION deserves to be dismissed with costs.

PRAYER

(a) (a) Respondent No. 2 prays that the Writ Petition be dismissed with costs.

Solemnly affirmed at Mumbai

On this 5th day of September 2026

Before Me

DEPONENT

VERIFICATION

VERIFICATION

I, Arvind Rajan, the Deponent above named, do hereby verify that the contents of paragraphs 1 to 7 and the Prayer above are true and correct to my knowledge and belief and that nothing material has been concealed therefrom.

Verified at Mumbai on this 5th day of September 2026.

DEPONENT

DEPONENT

Rajan & Associates

Advocates for the Respondent No.2.